

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ELIEZER ALICEA,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
TATIANA ESPINAL, Shield No. 21480, POLICE
OFFICER VAREIKA, Shield No. 2302, POLICE
OFFICER GOMEZ, Shield No. 18894, LIEUTENANT
RAMON TEJEDA, and POLICE OFFICERS JOHN DOES
NUMBERS ONE THROUGH TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 11, 2017

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER TATIANA ESPINAL, Shield No. 21480, PSA 7, 737 Melrose
Avenue, Bronx 10455

POLICE OFFICER VAREIKA, Shield No. 2302, PSA 7, 737 Melrose Avenue, Bronx 10455

POLICE OFFICER GOMEZ, Shield No. 18894, PSA 7, 737 Melrose Avenue, Bronx 10455

LIEUTENANT RAMON TEJEDA, PSA 7, 737 Melrose Avenue, Bronx 10455

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

ELIEZER ALICEA,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
TATIANA ESPINAL, Shield No. 21480, POLICE
OFFICER VAREIKA, Shield No. 2302, POLICE
OFFICER GOMEZ, Shield No. 18894, LIEUTENANT
RAMON TEJEDA, and POLICE OFFICERS JOHN DOES
NUMBERS ONE THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff ELIEZER ALICEA, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On September 12, 2016, at approximately 1:00 a.m., plaintiff Eliezer Alicea, while lawfully sitting inside of a motor vehicle in front of 260 Brook Avenue, Bronx, New York, was subject to an unlawful search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was transported by the defendant officers to Lincoln Hospital against his will where he was unlawfully strip searched. Plaintiff was denied the right to due process and a fair trial. All criminal charges brought against plaintiff were dismissed and sealed on or about March 10, 2017. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, falsely arrested, strip searched, and denied plaintiff the right to due process in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff ELIEZER ALICEA is a resident of the state of New York.

3. POLICE OFFICER TATIANA ESPINAL, Shield No. 21480, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER TATIANA ESPINAL, Shield No. 21480, is and was at all times relevant herein, assigned to the PSA 7.

5. POLICE OFFICER TATIANA ESPINAL, Shield No. 21480, is being sued in her individual and official capacity.

6. POLICE OFFICER VAREIKA, Shield No. 2302, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER VAREIKA, Shield No. 2302, is and was at all times relevant herein, assigned to the PSA 7.

8. POLICE OFFICER VAREIKA, Shield No. 2302, is being sued in his individual and official capacity.

9. POLICE OFFICER GOMEZ, Shield No. 18894, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. POLICE OFFICER GOMEZ, Shield No. 18894, is and was at all times relevant herein, assigned to the PSA 7.

11. POLICE OFFICER GOMEZ, Shield No. 18894, is being sued in his individual and official capacity.

12. LIEUTENANT RAMON TEJEDA is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. LIEUTENANT RAMON TEJEDA is and was at all times relevant herein, assigned to the PSA 7.

14. LIEUTENANT RAMON TEJEDA is being sued in his individual and official capacity.

15. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. Police Officers John Does #1-10 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties.

They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

19. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

20. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on May 4, 2017.

21. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

22. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

23. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

24. On September 12, 2016, at approximately 1:00 a.m., plaintiff was lawfully sitting inside of a legally parked motor vehicle in front of 260 Brook Avenue, Bronx, New York, when the defendant police officers unlawfully arrested plaintiff without reasonable suspicion, probable cause, or any legal justification.

25. At no time relevant herein did plaintiff commit a crime or violate the law, nor did plaintiff behave in a manner that would lead a reasonable police officer to believe that plaintiff committed, was about to commit or was committing a crime.

26. By way of background, plaintiff was lawfully sitting inside of a parked vehicle in front of 260 Brook Avenue with his 17 year-old, mentally handicapped brother in-law.

27. Plaintiff was giving his brother in-law a pair of sneakers that plaintiff purchased for him as a gift earlier that day.

28. Suddenly, reasonable suspicion or probable cause, the defendant police officers unlawfully approached the vehicle, knocked on the driver's window, and told plaintiff that they needed to search the vehicle.

29. Plaintiff told the officers that he needed to call the owner of the vehicle, who was inside of 260 Brook Avenue to inform him of what was happening.

30. Suddenly, without provocation or legal justification, defendant Police Officer Vareika smashed the back passenger-side window of the vehicle, causing the glass to shatter and hit plaintiff.

31. As a result of defendant Police Officer Vareika unlawfully smashing the window of the vehicle, plaintiff suffered cuts all over his face and body.

32. As a result of defendant police officer Vareika unlawfully smashing the window of the vehicle, the window of the vehicle had to be replaced.

33. Without provocation or legal justification, the defendant police officers unlawfully and in an aggressive manner pulled plaintiff out of the vehicle.

34. Plaintiff was unlawfully searched, handcuffed and arrested by the defendant police officers without legal justification or probable cause.

35. At no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff's possession, custody, or control.

36. Thereafter, plaintiff was transported to Lincoln Hospital against his will by the defendant police officers.

37. At Lincoln Hospital, plaintiff was examined by hospital staff and was informed that he was being put "under observation" because the defendant police officers believed he had ingested a large amount of narcotics.

38. While at Lincoln Hospital, the defendant police officers subjected plaintiff to an unlawful strip search defendants conducted a strip search of plaintiff without reasonable suspicion or probable cause to believe that plaintiff was hiding contraband on his person, causing humiliation and emotional distress.

39. At no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

40. The Emergency Room staff at Lincoln Hospital determined that plaintiff was “alert,” “oriented,” demonstrated “no apparent distress,” and there was no reason to believe that plaintiff had ingested any narcotics or other mind-altering substances.

41. On September 12, 2016 at approximately 10:00 a.m., plaintiff was discharged from Lincoln Hospital and transported by the defendant police officers to the PSA 7 against his will, where he was photographed, fingerprinted and then placed in a holding cell.

42. On September 12, 2016, approximately 1:00 p.m., after approximately 14 hours in custody, plaintiff was transported to Bronx County Central Booking and placed in a holding cell.

43. The defendant police officers provided the District Attorney’s Office with false, misleading and/or incomplete information which allegedly led them to believe that plaintiff committed a crime.

44. Specifically, the defendant police officers falsely stated to the District Attorney’s Office that plaintiff ingested drugs and was in possession of drugs, when in fact, the defendant police officers knew that plaintiff did not ingest any drugs and was not in possession of any drugs.

45. Based upon the false, misleading and/or incomplete information provided to the District Attorney’s Office by the defendant police officers, a prosecution was initiated against plaintiff.

46. On September 12, 2016 at approximately 11:00 p.m., after approximately 24 hours in custody, plaintiff was arraigned in Bronx County Criminal Court, charged with crimes he did not commit and was released from custody.

47. The officers unlawfully charged plaintiff with Obstruction of Governmental Administration in the Second Degree, Criminal Possession of Marijuana in the Fifth Degree, and Unlawful Possession of Marijuana.

48. Thereafter, all charges were dismissed and sealed in their entirety on March 10, 2017.

49. Some of the police officer defendants observed the violation of plaintiff’s rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest and imprisonment, strip search and denial of due process and the right to a fair trial against plaintiff.

50. The unlawful search, false arrest, and false imprisonment, strip search, and denial of a right to fair trial by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, strip searched, falsely arrested, and falsely imprisoned plaintiff, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

53. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

56. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

59. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

62. Defendants lacked probable cause to search plaintiff and the vehicle.

63. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

66. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Eliezer Alicea. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

69. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

70. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

73. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Denial of Right to Fair Trial/Due Process

74. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein

75. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

76. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

77. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

78. In withholding/creating false evidence against plaintiff Eliezer Alicea, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

79. As a result of the foregoing, plaintiff Eliezer Alicea, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

82. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Unlawful Strip Search

83. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. Plaintiff was strip-searched by defendants without an individualized reasonable suspicion that plaintiff was concealing weapons or other contraband based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

85. As a result of the foregoing, plaintiff was deprived of his Constitutional rights and he sustained great emotional injuries.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

87. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

88. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 87 with the same force and effect as if more fully set forth at length herein.

89. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

90. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligence

91. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. Defendants owed a duty of care to plaintiff.

93. To the extent defendants claim that the injuries to plaintiff's persons by the defendant police officers was unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by accidentally and negligently smashing a glass window near plaintiff, causing glass shards to hit plaintiff and cut plaintiff on his face and body.

94. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

95. All of the foregoing occurred without any fault or provocation by plaintiff.

96. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

97. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

98. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

99. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 98 with the same force and effect as if more fully set forth at length herein.

100. The use of excessive force by smashing the car window causing glass to cut plaintiff's face, and by using unreasonable force throughout the course of plaintiff's arrest is an objectively unreasonable physical seizure of plaintiff in violation of his rights under the

Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

101. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

102. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

TENTH CAUSE OF ACTION

Assault

103. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

105. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

106. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

107. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

108. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION**Battery**

109. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 108 with the same force and effect as if more fully set forth at length herein.

110. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

111. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

112. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

113. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

114. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELVTH CAUSE OF ACTION**Failure to Intervene**

115. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 114 with the same force and effect as if more fully set forth at length herein.

116. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

117. Defendants failed to intervene to prevent the unlawful conduct described herein.

118. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

119. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

120. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

121. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

122. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

123. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
December 11, 2017

_____/s/
STUART E. JACOBS